

Court No. - 3

Case :- WRIT - C No. - 32843 of 2023

Petitioner :- Rajesh Jaiswal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sunil Dubey

Counsel for Respondent :- C.S.C.,Manu Ghildyal,Usha Kiran

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

1. Learned counsel for the petitioner states that a recovery certificate had been issued without any basis.
2. Learned counsel for the Electricity Department, Ms. Usha Karan may produce the order on the basis of which the recovery certificate has been issued.
3. List this case on 22.11.2023 as fresh.
4. Till the next date of listing, no coercive action shall be taken against the petitioner.

Order Date :- 19.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

1. In pursuance of the order dated 19.10.2023, learned counsel for the Electricity Department has handed over to the Court a bill, as per which the permanent disconnection of electricity was done on 7.3.2015 and that the arrears as on that date were Rs.3,47,469/-.
2. A copy of the aforesaid bill be also handed over to the learned counsel for the petitioner.
3. Learned counsel for the Electricity Department submits that if the petitioner is aggrieved by the aforesaid bill, he may approach the concerned Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.
4. Under such circumstances, we provide that if the petitioner files a complaint before the appropriate authority with regard to billing then the said complaint be entertained in accordance with law and an appropriate order be passed thereon within a period of two months from today.
5. For a period of two months from today or till a decision is taken on the complaint, whichever is earlier, no coercive action shall be taken against the petitioner.
6. With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 22.11.2023

Kuldeep